



Appeal Decision

Site visit made on 21 August 2026

by L Gardner MRTPI

an Inspector appointed by the Secretary of State

Decision date: 8 September 2026

Appeal Ref: 6009871

77 Harvey Road, Ilford, Redbridge IG1 2NJ

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr I Wahid against the decision of the London Borough of Redbridge.
 - The application Ref is 0583/26
 - The development proposed is change of use of premises from Use Class B (storage) to Use Class E (a) retail.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. During the course of the appeal, a revised National Planning Policy Framework (the Framework) was published on 17 August 2026. The main parties were provided with an opportunity to comment. I have had regard to the 2026 version of the Framework in my decision.
3. It was stated within the application form that the change of use had not already started. However, I observed during my site visit that the appeal site was in a retail use, for the hire of motor bikes. I have therefore taken the development to be retrospective.

Main Issue

4. The main issue is the effect of the development on the vitality of nearby designated local centres.

Reasons

5. The appeal site relates to a modestly sized plot fronting Harvey Road, a street which is primarily residential in character. There is no dispute between the main parties that the site is outside of a designated centre, being approximately 220 metres away from the nearest key retail parade on Ilford Lane, and approximately 550 metres away from the southern end of Ilford Lane Local Centre. The development has therefore resulted in the introduction of a main town centre use in a location that is not within a defined town or local centre.
6. Policy LP9 of the Redbridge Local Plan (2018) (the Local Plan) seeks to ensure the future vitality and viability of town centres. The policy states that proposals outside town centres should demonstrate that all in-centre, and then well connected edge of centre options have been assessed for their availability, suitability and viability. Policy LP10 of the Local Plan refers to the need to apply a

sequential test to planning applications for new town centre uses outside of the borough's town centres.

7. These policies are in line with Policy SD7 of the London Plan (2021) (the LP) which outlines a town centre first approach, requiring the application of the sequential test to applications for main town centre uses. The policy is clear that, out-of-centre sites should only be considered if it is demonstrated that no suitable sites are (or are expected to become) available within town centre or edge of centre locations. It is explicit within the policy that applications that fail the sequential test should be refused.
8. The development plan is clear that the onus falls on the applicant to sequentially consider alternative sites. I have not been provided with any substantive evidence to suggest that there are no other suitable town or local centre sites available, or expected to become available within a reasonable period, within nearby local centres.
9. The size of the retail unit falls below the threshold outlined in Policy LP10 of the Local Plan which requires an impact assessment. Indeed, I acknowledge that the retail floor space arising from the development is modest at around 23m², far below a large format or destination retail use.
10. Nevertheless, the size of the unit alone does not eradicate the potential for the development to have a material impact on the retail function of nearby local and town centres.
11. It is presented that the retail unit would serve its local catchment area as a small shop, in the context of the Local Plan justification text which outlines that isolated shops are vital for the role they play in serving day to day needs.
12. However, elsewhere it is accepted that the appeal site is within the same local walking catchment as Ilford Lane Local Centre and the key retail parades on Ilford Lane. The development therefore does not comprise an isolated shop. Instead, it potentially competes and detracts from the existing uses within the nearby local centres and retail parades. In doing so, it dilutes the function of the nearby local centres and undermines their coherence.
13. Despite the modest size of the retail unit, the development contributes towards a detrimental effect on the overarching aim set out in the development plan which seeks to strengthen and enhance the town and local centres.
14. Consequently, without any substantive evidence to the contrary, I cannot conclude that the development does not have a harmful effect on the vitality of designated local centres. It therefore conflicts with Policies LP9 and LP10 of the Local Plan as well as Policy SD7 of the LP.

Other Matters

15. My attention has been drawn to an appeal decision elsewhere within the London Borough of Redbridge¹. I accept that there are similarities between that decision and the appeal scheme before me, both relating to modestly proportioned commercial units.

¹ Appeal Ref: APP/W5780/W/19/3231643 decision dated 21 February 2020

16. Nevertheless, there are also notable differences. Namely, the potentially affected local centres are not the same as the context of the appeal site, and I have limited details as to how close that appeal site was to the nearest affected centres. The previous appeal decision is therefore not so directly comparable to the appeal development that it would lead me to alter my overall findings.
17. I note that no objections were raised in relation to matters of character and appearance or highway safety. Whilst the Council suggested that the initially proposed opening hours could create issues in relation to neighbouring living conditions, this could likely be addressed through the imposition of a planning condition. Nevertheless, a lack of harm in respect to these matters does not specifically weigh in favour of the development.

Planning Balance

18. Policy S4 of the Framework outlines that development proposals within settlements should be approved unless the benefits of doing so would be substantially outweighed by adverse effects, when assessed against the national decision-making policies in the Framework.
19. The Framework is clear that, in applying Policy S4 of the Framework, the circumstances in which the benefits of approving development are likely to be substantially outweighed by adverse effects include a failure to comply with one of the national decision-making policies which state that development proposals should be refused in specific circumstances.
20. The development has associated economic benefits, representing the efficient use of an existing building and offering support for a small business with associated employment opportunities. However, owing to the scale of the development, these benefits are modest.
21. On the other hand, I have identified that the development likely has a harmful effect on the vitality of existing designated local centres. In this respect, the development is at odds with Policy TC3 of the Framework which is clear that where a development proposal fails to satisfy the sequential test, it should be refused.
22. I find that, in the application of Policy S4 of the Framework, the benefits of approving the development are substantially outweighed by the adverse effects, arising in part from the failure to comply with Policy TC3 of the Framework.

Conclusion

23. I conclude that the development is contrary to the development plan when read as a whole, and material considerations do not dictate that a decision should be made other than in accordance with the development plan. The appeal is therefore dismissed.

L Gardner

INSPECTOR